

24NNCV05053 24NNCV05053

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Case Number: 24NNCV05053 Hearing Date: August 21, 2026 Dept: D

TENTATIVE RULING

Calendar: 9

Date: August 21, 2026

Case No: 24NNCV05053 Trial Date: May 10, 2027

Case Name: Tran v. Esparza, et al.

MOTION TO COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES

[CCP § 2030.300]

Moving Party: Plaintiff, Henry Chi Tran, by and through Hung Tran, his conservator

Responding Party: Defendant, Martin Vera

RELIEF REQUESTED:

Compel further responses to Form Interrogatories Nos. 2.6, 12.1, 12.6, 15.1, 16.2 and 16.3 and request for sanctions.

CAUSES OF ACTION: from First-Amended Complaint

1) Physical Abuse of Dependent Adult – Battery

2) Physical Abuse of Dependent Adult – Assault

3) Neglect of Dependent Adult

4) Negligence

5) Intentional Infliction of Emotional Distress

6) False Imprisonment

7) Abandonment

8) Isolation

9) For Unlawful, Deceptive and/or Unfair Business Practices

CHRONOLOGY:

Discovery Served: May 16, 2025

Responses Served: March 5, 2026 / July 31, 2026

Motion Served: May 18, 2026

SUMMARY OF FACTS:

Plaintiff Hung Tran, Conservator for Henry Chi Tran, brings this action against Defendants Efren Esparza ("Esparza"), Martin Vera ("Vera"), Xclusive Services LLC, Eastern Los Angeles Regional Center for the Developmentally Disabled, Inc and Adan Canas. The Complaint alleges that Henry is a thirty-six-year-old male who suffers from developmental disabilities and is a dependent adult within the meaning of Welfare & Institutions Code section 15610.23. Plaintiff alleges that Henry received in-home caregiving services from Xclusiv Services between 2020 and 2022, during which time Henry suffered ongoing and grievous injuries and damages. The Complaint alleges that Defendants and each of them intentionally isolated Henry from his mother and brothers, by manipulation and false statements. Plaintiff alleges that this maneuver was done with the intent of preventing Henry's family from knowing the harm Henry was suffering.

The Complaint alleges that while Defendants were responsible for Henry's care and wellbeing, they left him unattended, unsupervised, and in need of care. Specifically, Plaintiff alleges that Defendants failed to provide Henry with adequate nutrition or medical treatment and subjected Henry to physical abuse. As a result, Henry allegedly suffered multiple physical injuries, including visible marks on his back apparently inflicted by belt whips or blunt objects. The Complaint further alleges that on July 12, 2022, Henry sustained a large laceration above his right eyebrow, a black eye, and an abrasion on his forehead. Plaintiff also alleges that on October 14, 2022, Defendants locked Henry in a room unattended for several hours, after which he was eventually found by the property manager in the backyard, alone and without any clothes on. Two days later, on October 16, 2022, Henry's mother visited and allegedly observed multiple bruises and scars on Henry's back.

The Complaint alleges that Henry has sustained injuries to his person and nervous system, which have adversely affected his health, strength, and activity. As a result of these injuries, Plaintiff alleges that Henry has suffered, and continues to suffer, significant mental, physical, and nervous pain and suffering.

ANALYSIS:

A motion to compel a further response is used when a party gives unsatisfactory answers or makes untenable objections to interrogatories, demands to produce, or requests for admission. (CCP, § 2031.310, subd. (a); *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 403.)

To compel a further response to interrogatories, the movant can show that: (1) the responding party's answer to a particular interrogatory is evasive or incomplete (CCP, § 2030.300, subd. (a)(1)); (2) the responding party's exercise of the option to produce documents in response to an interrogatory was unwarranted or the required specification of those documents was inadequate (CCP, § 2030.300, subd. (a)(2)); and (3) the responding party's objection to an interrogatory is without merit or too general (CCP, § 2030.300, subd. (a)(3); see, e.g., *Williams v. Superior Court* (2017) 3 Cal.5th 531, 550 [defendant's argument that plaintiff was required to establish good cause or prove merits of underlying claim before propounding interrogatories without merit]).

Plaintiff moves to compel further responses to FROGs Nos. 2.6, 12.1, 12.6, 15.1, 16.2 and 16.3. Vera asserts that he attempted to serve supplemental responses on May 15, 2026, but the email containing the supplemental responses got stuck in the outbox and was inadvertently not delivered. (Eyler Decl., ¶¶ 5-14.) Vera successfully re-served the supplemental responses on July 31, 2026. (Eyler Decl., ¶ 15.) In the reply, Plaintiff asserts that the response to FROG No. 15.1 remains deficient. (Reply, p. 1:6-8.)

FROG No 15.1 states:

"Identify each denial of a material allegation and each special or affirmative defense in your pleadings and for each:

- (a) state all facts upon which you base the denial or special or affirmative defense;
- (b) state the names, ADDRESSES, and telephone numbers of all PERSONS who have knowledge of those facts; and
- (c) identify all DOCUMENTS and other tangible things that support your denial or special or affirmative defense, and state the name, ADDRESS, and telephone number of the PERSON who has each DOCUMENT"

(Sep. Statement, p. 5:16-24.)

In response, Vera states: "Responding Party cannot fully respond to this interrogatory at this time because discovery and investigation are ongoing. Responding Party reserves the right to supplement and amend this response as additional information becomes available."

(Sep. Statement, p. 5:26-28.)

Vera provided no further response to this discovery request in his supplemental responses. (Lo Decl., Ex. E.)

Vera's response is not sufficient. "Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits." (CCP, § 2030.220 subd. (a).) "If an interrogatory cannot be answered completely, it shall be answered to the extent possible." (CCP, § 2030.220 subd. (b).) Moreover, if "the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state,

but shall make a reasonable and good faith effort to obtain the information.” (CCP, § 2030.220 subd. (c).)

Vera does not state that a reasonable and good faith effort has been made to obtain the information. The fact that discovery is ongoing is neither a cognizable objection nor a justification for failure to respond to the extent possible.

Thus, the motion is GRANTED as to FROG No. 15.1.

Requests for Sanctions

“The court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (CCP, § 2033.290, subd. (d).)

“The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” (Rules of Court, rule 3.1348, subd. (a).)

Even after a party provides discovery responses, a party can keep its motion on calendar and the court has authority to grant sanctions, even if it denies the motion to compel responses “as essentially unnecessary, in whole or in part.” (Sinaiko, supra, 148 Cal.App.4th at 409.)

The burden is on the party subject to sanctions to show substantial justification or injustice. (Mattco Forge, Inc. v. Arthur Young & Co. (1990) 223 Cal.App.3d 1429, 1436.)

Plaintiff requests sanctions in the amount of \$3,676.00. The amount requested is high, given that the motion is granted as to only 1 of the 6 discovery requests. The sanctions are adjusted accordingly. Sanctions are awarded as follows: 5 hours at \$600.00 per hour for a total of \$3,000.00.

RULING:

Plaintiff’s Motion to Compel Further Responses to Form Interrogatories is GRANTED as to FROG No. 15.1, and MOOT as to the remaining requests.

Defendant Martin Vera is ordered to provide a full, Code-compliant, verified response to FROG No. 15.1 within 20 days of this order.

Monetary sanctions sought by the moving party:

Utilizing a lodestar approach, and in view of the totality of the circumstances, the Court finds that the total and reasonable amount of attorney’s fees and costs incurred for the work performed in connection with the pending motion is \$3,000.00 (5 hours @ \$600.00/hour [7.2 hours requested] plus \$96.00 in filing fees [Amount Requested \$3,676.00], which sum is to be awarded in favor of Plaintiff and against Defendant Martin Vera and counsel Philip H. Lo and Gordon Rees Scully Mansukhani LLP, jointly and severally, payable within 20 days. (CCP, § 2030.300, subd. (d); CRC Rule 3.1348(a).)

Counsel for moving party is ordered to prepare an order for sanctions and submit it on eCourt by noon today in accordance with this order.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.